
LUIS R. GOMEZ v. RAJ KUMAR SHARMA and SUNRISE ORCHARDS
Case No. FCS055666 (consolidated with FCS059299, CU23-00585, CU23-05722)

SHARMA's Motion to Enforce Settlement Agreement

TENTATIVE RULING

RAJ KUMAR SHARMA ("SHARMA") and PHANI RAJA KUMAR MADAM ("MADAM") jointly move to enforce the global settlement agreement with LUIS R. GOMEZ ("GOMEZ") entered into before the court on March 5, 2026 and resolving cases FCS055666, FCS059299, CU23-00585, CU23-05722, and FCM176018.

The terms of the settlement agreement are as follows: GOMEZ agreed to purchase the property at 7403 Porter Road, Dixon, CA (the "Porter Property") with a down payment of \$655,000 to SHARMA as well as a \$25,000 down payment to MADAM. (Declaration of Jeffrey Arlen in support of Motion to Enforce Settlement ("Arlen Dec.") at ¶ 2, Exhibit 1 [transcript at 7:7-11].) The transaction was to close on or before May 5, 2026, with GOMEZ receiving title at time of closing. (*Ibid.* [at 6:24-7:3].) GOMEZ was also to execute a promissory note in SHARMA's favor for \$675,000 and in MADAM's favor for \$200,000, with both bearing five percent interest annually and payable in annual installments. (*Ibid.* [at 7:13-26].) GOMEZ was to be responsible for taxes and insurance on the Porter Property after closing. (*Ibid.* [at 9:10-27].) If GOMEZ failed to make any payments on those notes, taxes, or insurance SHARMA was to send GOMEZ notice and afford him sixty days to cure the deficiency; if the deficiency was not timely cured, then stipulated judgment would issue, GOMEZ would be evicted, and SHARMA would take possession of the Porter Property. (*Ibid.* [at 8:19-9:9].) Each side agreed to bear their own costs and attorneys' fees. (*Ibid.* [transcript at 6:20-21].)

The foregoing terms were made an enforceable order of the court not dependent on reduction to writing. (Arlen Dec. at ¶ 2, Exhibit 1 [at 12:6-18].)

Code of Civil Procedure section 664.6 provides that when parties to an action settle the case by executing a written settlement agreement outside the presence of the court, or orally before the court, the court may enter judgment pursuant to the terms of the settlement agreement. This statute provides a summary procedure for enforcing a settlement agreement without the need for a new lawsuit. (*Critzer v. Enos* (2010) 187 Cal.App.4th 1242, 1252.) In determining a motion to enforce settlement pursuant to Code of Civil Procedure section 664.6 the court sits as a trier of fact and may enter the terms of the settlement agreement as a judgment. (*Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360.)

The sale of the Porter Property did not close by the May 5, 2026 deadline. Examination of the declarations submitted in support of and in opposition to this motion shows that GOMEZ did not perform his obligations under the agreement. As the parties attempted to reduce the settlement agreement to writing (despite this not being a necessary step